

FEDERAL MARITIME COMMISSION

USL AUTO EXPORTING, INC., *Complainant*

v.

EASY SHIPPING CORPORATION, *Respondent*

DOCKET NO. 23-13

RESPONDENT'S RESPONSE TO RULE TO SHOW CAUSE

NOW COMES, Easy Shipping Corporation ("Respondent"), by and through their attorneys, Rafati, Ward & Associates, P.C. and respectfully submits its Response to Rule to Show Cause and in support thereof states as follows:

1. On or about March 13 2024, Respondent's attorney Fadi Y. Rafati file an appearance on behalf of the Respondent.
2. On the same day, Respondent's counsel filed a Response to Complainant's Motion for Summary Judgment.
3. On March 18, 2024, this Honorable Court denied Complainant's Motion for Summary Judgment.
4. Approximately a week later, Complainant filed a Motion to Amend Pleadings, mainly to amend the Motion for Summary Judgment.
5. On March 25, 2024, Complainant file a Renewed Motion for Summary Judgment.
6. The renewed Motion for Summary Judgment did not include any change in any facts, the Complainant was only amending the Motion to add exhibits and change the amount of damages they purportedly incurred.
7. It is this Motion for Summary Judgment that Respondent has not responded to unintentionally.

8. Respondent's counsel was the one responsible for filing the Response and maintaining their compliance throughout these proceedings.

9. Respondent's counsel should have filed the Response to the Renewed Motion for Summary Judgment on the same day Respondent file their Response to this Honorable Court's request for Supplemental Information.

10. The Respondent's Response to the Renewed Motion for Summar Judgment is attached hereto.

11. Respondent's counsel has no excuse for not complying with the filing deadline.

12. Respondent's counsel is a firm that historically comprised of two attorneys but one of the attorneys passed away and is no longer with the firm.

13. Mr. Rafati is the only attorney at the firm.

14. This is not an excuse, as we have a duty to maintain our files and keep up with dates and deadlines.

15. Mr. Rafati is not setting forth any excuse for the failure to Respond to the Renewed Motion for Summary Judgment.

16. In this case, the Complainant has been filing fraudulent documents, knowingly making intentional misrepresentations to the Court and continuing to submit pleadings with false information.

17. For example, in Complainant's Renewed Motion for Summary Judgment, they include part of the damages the values of the 4 vehicles, intentionally failing to report that they have received the container back with all of their vehicles.

18. Further, the Complainant indicates the values of these 4 vehicles in their Renewed Motion for Summary Judgment that are completely different than the value they gave to customs when attempting to ship the vehicles.

19. Respondent's counsel has received new evidence as of yesterday regarding payments made which will also prove that the Complainant has continued to be disingenuous to the Court to say the least.

20. Respondent's counsel will admit that our participation in this matter has been quite lacking but Respondent is not liable and justice and equity cry for this Complainant not to be allowed to prevail by default.

21. There is also the brief, findings of fact and appendix which should be filed per the Order to Show Cause issued by this Honorable Court.

22. Respondent's counsel is pleading for additional time to file the brief, statement of facts and appendix in order to be able to submit a full, complete picture of what occurred between these parties.

23. Respondent's counsel is seeking additional time to file those items as a result of newly discovered evidence from the Respondent which Respondent's counsel just learned from Respondent on Wednesday.

24. For example, Respondent's counsel recently learned that the Complainant has submitted under oath evidence of payments which he knew were not correct.

25. The Complainant has sent emails to CMA purporting to be an agent/employee of the Respondent without any knowledge to the Respondent. The Respondent only learned of this when CMA replied to one of the emails sent by the Complainant and included the Respondent on the reply.

26. Respondent is a very small business operated solely by one individual who has a language barrier, is not very familiar with the use of technology and emails and has his wife now helping retrieve all of the materials that will show that this matter is one of fraud, deceit and intentional misrepresentation.

27. This same Complainant has a history of filing similar claims without merit.

28. This Complainant submitted fraudulent information the Respondent which caused the shipment to be returned.

WHEREFORE, the Respondent prays that this Honorable Court grant the following:

1. Allow Respondents to file their Response to Complainant's Renewed Motion for Summary Judgment *instanter* and not enter a default against the Respondent.
2. Respondent further prays that Respondent is granted a 5 day extension to file a brief, findings of fact and appendix.
3. Respondent's counsel is going to work over the weekend to catalogue evidence, mainly emails, bank transfers, text message with photos and be able to present the evidence in an appendix along with the brief and findings of fact.
4. Respondent prays that this Honorable Court grant these requests so that this matter may be decided upon the merits and truth and not by default.
5. And any other relief this Honorable Court may deem appropriate.

January 24, 2025

Respectfully submitted,

/s/ Fadi Y. Rafati

Respondent's Attorney

Rafati, Ward & Associates, P.C.
15010 S. Ravinia Avenue
Suite 14
Orland Park, Illinois 60462
312-228-6200
frafati@rafatilegal.com

CERTIFICATE OF SERVICE

I, Fadi Yousef Rafati, do hereby certify that I served upon the named Complainant a true and correct copy of the foregoing Response to Rule to Show Cause via electronic mail to general.manager@uslautoexporting.com on this 24th day of January 2025.

/s/ Fadi Y. Rafati

Respondent's Attorneys

Rafati, Ward & Associates, P.C.
15010 S. Ravinia Avenue
Suite 14
Orland Park, Illinois 60462
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frafati@rafatilegal.com